

24VECV02013 24VECV02013

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-09-14

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Case Number: 24VECV02013 Hearing Date: September 14, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Siala

Siliga,

Plaintiff.

v.

Team

Combat League, LLC, et al.

Defendant.

Case Number Department

24VECV02013 107

COURT'S [TENTATIVE]

ORDER RE:

Motion for

Leave to File First Amended Complaint

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Continued

I.

BACKGROUND

Plaintiff

Siala Siliga ("Plaintiff") is a world champion kickboxer and mixed martial artist. (Complaint ¶ 6.) Plaintiff was employed by Defendant Team Combat Leave, LLC working as a professional fighter. (Complaint ¶ 7.) Defendant Ahmed Sheikh owns Team Combat Leave, LLC and is Team Combat Leave, LLC's chief executive officer. (Complaint ¶ 11.) Defendant Ricky Funnes was Plaintiff's coach and supervisor. (Complaint ¶ 12.) Throughout his employment, Plaintiff was subjected to discrimination and harassment because of his national origin, color, race, ancestry, and age. (Complaint ¶ 23.)

On

April 30, 2024, Plaintiff filed a complaint against Defendants Team Combat Leave, LLC, Sheikh, Funnes, and Does 1 through 10, alleging causes of action for: (1) discrimination in violation of the FEHA of the FEHA Government Code section 12940, subdivision (I) based on race, color, national origin, and/or ancestry and age; (2) harassment in violation of the FEHA Government Code section 12940, subdivision (J), based on race, color, national origin, and/or ancestry and age; (3) failure to prevent harassment and discrimination in violation of FEHA, Government Code section 12940, subdivision (K); (4) failure to pay wages [Labor Code section 210]; and (5) intentional infliction of emotional distress.

On

April 17, 2026, Plaintiff filed a motion for leave to amend complaint (the "Motion"). Defendant Ricky Funnes opposed the motion on substantive and procedural grounds. The Court denied the motion on May 22, 2026 for failure to satisfy procedural requirements.

Plaintiff

renewed his motion on July 22, 2026. He applied ex parte on August 2, 2026 to advance the hearing on his motion to this date. The Court granted Plaintiff's application.

Defendants

filed no opposition to Plaintiff's motion, nor Plaintiff any reply.

Jury

trial is set to begin on November 2, 2026.

II.

DISCUSSION

"A

motion to amend a pleading before trial must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located." (Cal. Rules of Court, rule 3.1324(a).)

The

motion must be accompanied by a separate declaration, which must specify: "(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." (Cal. Rules of Court, rule 3.1324(b).)

Substantively,

the Court is not satisfied with Plaintiff's explanation why his request for amendment was not made earlier. This case was filed more than two years ago. Although Plaintiff attests he did not discover all the facts in his proposed amendments until he conducted discovery, he does not explain when the facts were discovered. Also, it is unclear why these amendments are necessary or proper this close to trial. (See Siliga Decl., ¶¶ 8-12.) Plaintiff proposes a substantial expansion of his complaint more than two years into the litigation, less than two months before trial. A better showing is necessary.

Perhaps

more importantly: Plaintiff has not proven service of his motion on any defendant. There is no proof of service attached to Plaintiff's moving papers.

The only demonstrated notice to Defendants in connection with this motion is Plaintiff's notice of his ex parte application to advance the hearing date. However, no defendants appeared at the hearing on that application. Plaintiff was ordered to give notice of hearing on this date, but he has not filed proof he did so. The Court notes that Defendants opposed Plaintiff's most recent motion for leave to amend his complaint; their failure to do so here is conspicuous in the absence of a proof of service.

III. CONCLUSION

The Court reserves ruling on the substance of Plaintiff's motion. The Court instead CONTINUES the hearing to October 7, 2026, for Plaintiff to effect and prove service of his papers on all interested parties.

Dated: September 14, 2026 _____ Hon. Eric
Harmon

Judge of the Superior
Court